

§ 617. Service of summons. (a) Service of a summons and petition under this part shall be made by delivery of a true copy thereof to the person summoned at least twenty days before the time stated therein for appearance. If so requested by the parent or other person legally responsible for the child's care, the court may extend the time for appearance and answer.

(b) If after reasonable effort, personal service is not made, such substituted service or service by publication as may be ordered by the judge shall be sufficient.

(c) Personal service within or without the state or in a foreign country shall be made in accordance with the provisions of section three hundred seven of the surrogate's court procedure act, as the same may be amended from time to time, with respect to service of a citation.

(d) Service of the summons and other process with a notice as specified herein by publication shall be made in accordance with the provisions of CPLR 316, provided, however, that a single publication of the summons or other process with a notice as specified herein in only one newspaper designated in the order shall be sufficient. In no event shall the whole petition be published. The petition shall be delivered to the person summoned at the first court appearance pursuant to section one hundred fifty-four-a of this chapter. The notice to be published with the summons or other process shall state:

1. the date, time, place and purpose of the proceeding,
2. that upon failure of the person summoned to appear, all of his or her parental rights in the child may be terminated, and
3. that his or her failure to appear shall constitute a denial of his or her interest in the child, which denial may result, without further notice, in the transfer or commitment of the child's care, custody or guardianship or in the child's adoption in this or any subsequent proceeding in which such care, custody or guardianship or adoption may be at issue.